BRENDAN NGWA NFORBI
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI, Plaintiff, v. **DIANA CANDELARIA, in her individual capacity; STEVE GORDON, in his official capacity; and DOES 1-10,** Defendants.	Case No. 3:26-cv-08272-LJC **NOTICE IDENTIFYING OPERATIVE FIRST AMENDED COMPLAINT** [Fed. R. Civ. P. 15] Hon. Lisa J. Cisneros

NOTICE IDENTIFYING OPERATIVE FIRST AMENDED COMPLAINT

TO THE COURT AND ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

Plaintiff Brendan Ngwa Nforbi, appearing in propria persona, submits this Notice solely to clarify the record concerning two clerk-stamped First Amended Complaints now appearing on the docket of this action.

1. On August 14, 2026, the Clerk filed a First Amended Complaint as Dkt. 5 (46 pages).

2. On August 17, 2026, the Clerk filed a First Amended Complaint as Dkt. 6 (44 pages). Among other conforming edits, Dkt. 6 omits the Burrell v. Jackson passage that appeared in the original

complaint.

3. The operative pleading of record is the First Amended Complaint filed August 17, 2026 as Dkt. 6. The earlier First Amended Complaint filed August 14, 2026 as Dkt. 5 is superseded in full and is of no further force or effect. See Fed. R. Civ. P. 15(a); Lacey v. Maricopa County, 693 F.3d 896, 927 (9th Cir. 2012) (en banc).

4. This Notice does not amend, supplement, or withdraw any allegation in Dkt. 6. It is filed only to identify the operative pleading clearly on the face of the docket before any responsive pleading or Rule 12 motion.

Dated: August 23, 2026

Respectfully submitted,

_____

BRENDAN NGWA NFORBI

Plaintiff, In Propria Persona

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI
Plaintiff

Case Number: 3:26-cv-08272-LJC

V.

DIANA CANDELARIA, individually;
STEVE GORDON, officially; and DOES 1-10
Defendants

PROOF OF SERVICE

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I hereby certify that on August 23, 2026, I served a copy of the attached

Notice Identifying Operative First Amended Complaint,

by placing a copy in a postage paid envelope addressed to the person(s) hereinafter listed, by depositing said envelope in the United States Mail at San Jose, California:

(List Name and Address of Each Defendant or Attorney Served)

Diana Candelaria, Driver Safety Hearing Officer
California Department of Motor Vehicles
Legal Affairs Division, Mail Station C128
2415 First Avenue
Sacramento, CA 95818

Steve Gordon, Director
California Department of Motor Vehicles
Legal Affairs Division, Mail Station C128
2415 First Avenue
Sacramento, CA 95818

I declare under penalty of perjury that the foregoing is true and correct.



Brendan Ngwa Nforbi, In Propria Persona